

[illegible]

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Perform Dust Hazard Analysis - This is a non-personal service contract to provide an onsite Dust Hazard Analysis (DHA) per NFPA 660 (Latest Revision), Standard for Combustible Dusts and Particulate Solids. The Contractor shall perform explosivity and combustibility testing on three different samples provided by CCAD, in order to determine if the dust from any or all of the samples 1) supports self-sustaining flame propagation when in a pile, or 2) is explosive when suspended in a cloud. All tasks and deliverables must be completed in accordance with Performance Work Statement. Product Service Code: B510 Pricing Arrangement: Firm Fixed Price	1	Each		

Continuation of Description

Requirements

Dust Hazard Analysis

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Inspection and Acceptance to be completed in accordance with Performance Work Statement DoDAAC: W45N7V CountryCode: USA W0MU USA DEP CORPUS CHRISTI 308 CRECY STREET, CORPUS CHRISTI TX 78419-5260 CORPUS CHRISTI, TX 78419-5260 UNITED STATES Cruz Zamudio
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Continuation of Deliveries or Performance

0001	Delivery Schedule Delivery Estimated By Delivery Date 17 Jul 2026 Quantity 1 Each Address and POC Place of Performance DoDAAC: W45N7V CountryCode: USA W0MU USA DEP CORPUS CHRISTI 308 CRECY STREET, CORPUS CHRISTI TX 78419-5260 CORPUS CHRISTI, TX 78419-5260 UNITED STATES Cruz Zamudio Period of Performance From 01 Jun 2026 To 27 Nov 2026
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Continuation of Accounting and Appropriation Data

Performance Work Statement (PWS)

For Combustible Dust Hazard Analysis at

Corpus Christi Army Depot Composite Shop Prep and Finish Room

1. GENERAL: This is a non-personal service contract to provide an onsite Dust Hazard Analysis (DHA) per NFPA 660 (Latest Revision), Standard for Combustible Dusts and Particulate Solids, to meet safety requirements at Corpus Christi Army Depot's Prep and Finish Facility within the Composite Shop.

1.1. Scope: The Contractor will plan, conduct, and prepare a DHA analysis per Chapter 7 of NFPA 660. The Contractor is required to be onsite and on location (Composite Shop) at Corpus Christi Army Depot to conduct the DHA.

1.2 Background: The Prep and Finish room is approximately 4,000 sq. ft. enclosed room with two types of dust capture systems: 4 open face booths (2 sizes) and 6 down-draft tables. The booths capture dust in trays underneath nanofiber cartridges (after pneumatic pulsing). The downdraft tables have similar nanofiber (cylindrical) cartridges. Dust accumulated after pulsing is transported by auger to a vacuum assisted hose and transported to dedicated 55-gallon drum adjacent to each downdraft table. Both type systems also use second stage HEPA filters prior to returning the air to the enclosed area. This facility is designated a Hazardous Area due to chromates and other heavy metals contained within dust/waste.

Prior dust characterization has been completed and follow up ASTM tests have been conducted. The Contractor will be furnished with these reports on award. Prior tests include:

Explosibility Screening Test (August 2021)

Dust Characterization Tests (Dec. 2022)

Minimum Explosible Concentration (MEC)

Minimum Ignition Concentration (MIE)

Layer Ignition Temperature (LIT)

Minimum Autoignition Temperature - Cloud (MAIT-cloud)

Volume Resistivity - Powders

1.3 Description of Services: The Contractor shall perform explosivity and combustibility testing on three different samples provided by CCAD, in order to determine if the dust from any or all of the samples 1) supports self-sustaining flame propagation when in a pile, or 2) is explosive when suspended in a cloud.

1.4 Period of Performance (POP): 8 Weeks.

1.5 Quality Control (QC): The Contractor shall develop and maintain an effective QC Program (QCP) to ensure services are performed in accordance with this PWS. The Contractor shall develop and implement procedures to identify, prevent and ensure non-recurrence of defective services. The Contractor's QCP is the means by which it assures itself that its work complies with the requirements of the contract. As a minimum, the Contractor shall develop QC procedures that address the areas identified in Technical Exhibit 1, Performance Requirements Summary. After acceptance of the QC Plan, the Contractor shall obtain the Contracting Officer (KO) acceptance in writing of any proposed changes to its QC system.

1.5.1 Quality Assurance (QA): The Government will evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure that the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.5.2 Recognized Holidays: (Not Applicable) The following are recognized US holidays. The Contractor shall not perform services on these days:

New Year's Day	Labor Day
Martin Luther King Jr.'s Birthday	Columbus Day
President's Day	Veteran's Day
Memorial Day	Thanksgiving Day
Juneteenth	Christmas Day
Independence Day	

1.5.3 Hours of Operation: The Contractor shall provide services between the hours of 0800 to 1630 Monday thru Friday, except on US Holidays or when the Government facility/installation is closed due to local or national emergencies, administrative closings, or similar Government-directed facility/installation closings. For other than firm fixed price contracts, the Contractor shall not be reimbursed when the Government facility is closed for the above reasons. The Contractor shall at all times maintain an adequate work force for the uninterrupted performance of all tasks defined within this PWS when the Government facility/installation is not closed.

1.5.4 Place of Performance: The DHA under this contract will be performed on-site at CCAD, Corpus Christi, TX., and will include on-site observation of the Prep and Finish Room which is the focus of this contract.

1.5.5 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the Contracting Officer (KO) in accordance with (IAW) RFO 42.5. The KO, Contracting Officer's Representative (COR), and other Government Personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings, the KO will apprise the Contractor of how the Government views the Contractor's performance and the Contractor shall apprise the Government of problems, if any, being experienced. The Contractor shall resolve outstanding issues raised by the Government. Contractor attendance at these meetings shall be at no additional cost to the Government.

1.5.6 Contracting Officer Representative (COR): The COR will be identified by a separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

1.5.7 Key Personnel: The following personnel are considered key personnel by the Government: Contract Manager and Alternate Contract Manager. The Contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the Contractor when the manager is absent shall be designated in writing to the KO. The contract manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. The contract manager or alternate shall be available during the hours of operation specified in 1.5.3, except for US holidays or when the Government facility is closed for administrative reasons.

PART 2

DEFINITIONS & ACRONYMS

2.0 DEFINITIONS AND ACRONYMS:

2.1 Definitions:

2.1.1 CONTRACTOR. A supplier or vendor awarded a contract to provide specific supplies or services to the Government. The term used in this contract refers to the prime.

2.1.2 CONTRACTING OFFICER (KO). A person with authority to enter into, administer, and/or terminate contracts, and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

2.1.3 CONTRACTING OFFICER'S REPRESENTATIVE (COR). An employee of the U.S. Government designated by the KO to monitor Contractor performance. Such appointment shall be

in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.4 DEFECTIVE SERVICE. A service output that does not meet the standard of performance associated with the PWS.

2.1.5 DELIVERABLE. Anything that can be physically delivered and includes non-manufactured items such as meeting minutes or reports.

2.1.6 KEY PERSONNEL. Contractor personnel that are evaluated in a source selection process that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.8 QUALITY ASSURANCE. The Government procedures to verify that services being performed by the Contractor are performed according to the acceptable standards.

2.1.9 QUALITY ASSURANCE SURVEILLANCE PLAN (QASP). An organized written document specifying the surveillance methodology to be used for surveillance of Contractor performance.

2.1.10 QUALITY CONTROL. All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.12 WORK DAY. The number of hours per day the Contractor provides services in accordance with the contract.

2.1.13 WORK WEEK. Monday through Friday unless specified otherwise.

2.2 Acronyms:

COR Contracting Officer's Representative

FAR Federal Acquisition Regulation

KO Contracting Officer

PRS Performance Requirements Summary

PWS Performance Work Statement

QA Quality Assurance

QAP Quality Assurance Program

QASP Quality Assurance Surveillance Plan

QC Quality Control

QCP Quality Control Program

RFO Revolutionary FAR Overhaul

TE Technical Exhibit

WAWF Wide Area Workflow

PART 3

GOVERNMENT FURNISHED PROPERTY, EQUIPMENT AND SERVICES

3.0 GOVERNMENT FURNISHED ITEMS AND SERVICES:

3.1 Materials: The Government will provide access to the facility and equipment subject to the DHA and will ensure access to key personnel necessary to complete the DHA. The Contractor should indicate which personnel or information is vital to the service in advance of the onsite DHA for scheduling purposes. All reasonable efforts will be made to accommodate requests, however in situations where this cannot be completed, reasonable effort will be made to provide the information prior to or after the DHA is conducted onsite.

PART 4

CONTRACTOR FURNISHED ITEMS AND SERVICES

4.0 CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: Except for those items specifically stated to be Government-Furnished in paragraph 3.0, the Contractor shall furnish everything required to perform these services as indicated in paragraph 1.1.

PART 5

SPECIFIC TASKS

5.0 REQUIREMENTS:

5.1 The Contractor will provide an onsite DHA at CCAD located in Corpus Christi, Texas as stated in above sections.

5.2 Complete all elements of a DHA as described in NFPA 660, Chapter 7.

5.3 Upon contract award, the Contractor will provide CCAD with certifications or qualifications of the individual(s) leading the DHA.

5.4 The Contractor will review prior dust-related reports supplied by CCAD POC. CCAD will also provide details about prior sample collections for review.

5.5 During the period of performance for this contract, if the Contractor determines additional characterization tests are required for any reason to validate findings and recommendations it will be stated so in the final report and will include a recommended test plan to address any concerns regarding the validity of the provided DHA. In such cases, the DHA recommendations for prevention/mitigation should make use of the CCAD provided dust characterization data with stated threshold limits to the validity of the DHA recommended actions as necessary.

5.6 The contractor will provide a schedule to complete the DHA with CCAD POC to coordinate with CCAD Safety, Engineering, and Production personnel prior to arrival. The schedule must include planned activities, dates, times, and note any required access to facilities and personnel.

5.7 For data collection (if required) involving instrumentation, plans must be reviewed at least two weeks in advance of conducting the onsite DHA. CCAD will determine the feasibility of collecting the data and will inform the Contractor within 3 business days of receipt of the plan if there are concerns or changes needed.

5.8 Provide a written DHA report (pdf format) containing findings and recommendations as provided for in Chapter 7 of NFPA 660.

5.9 Specific information/format requirements include, but not limited to include:

5.9.1 Date and duration of DHA field evaluation.

5.9.2 Contractor personnel involved with the DHA, their titles and certifications/qualifications.

5.9.3 For each hazard identified, indicate the specific hazards and sources (or potential sources) of ignition.

5.9.4 For each hazard identified, assess the current risks with justification of reasoning.

5.9.5 For each hazard identified, recommend preventive, corrective, and/or mitigation actions to meet compliance per section 4.2.4 of NFPA 660.

5.9.6 If there are multiple preventive, corrective, and/or mitigative actions that can be taken to prevent, eliminate, or reduce the severity of risk to meet compliance, provide these options.

5.9.7 If applicable, document any assumptions or limitations to the findings/recommendations as noted in 5.5.

5.10 A report will be provided to CCAD POC within 2 weeks of completing the onsite visit.

5.11 After CCAD is in possession of the final report, CCAD Safety, Engineering, or Production personnel are allowed to discuss the report with the Contractor through the designated POC for clarification via phone or online meeting. This will be limited to 3 or less occurrences totaling no more than 1 hour.

5.12 If errors, omissions or clarifications are deemed necessary by either party, the report will be revised and issued to CCAD (one time) within 2 weeks of the date the original report was received.

PART 6

APPLICABLE PUBLICATIONS

6.0 APPLICABLE PUBLICATIONS:

6.1 The Contractor shall abide by all applicable regulations, publications, manuals, and local policies and procedures listed below:

Publication	Mandatory or Advisory	Website
NFPA 660 (2025)	Mandatory	https://www.nfpa.org/codes-and-standards/nfpa-660-standard-development/660
FAR Subpart 42.5	Mandatory	https://acquisition.gov/content/subpart-425-postaward-orientation

PART 7

ATTACHMENTS/TECHNICAL EXHIBITS

7.0 Attachment/Technical Exhibit List:

7.1 Attachment 1 / Technical Exhibit 1: Performance Requirements Summary

ATTACHMENT 1 / TECHNICAL EXHIBIT 1

Performance Requirements Summary

PWS Paragraph	Task	Performance Standard	Acceptable Quality Levels (AQL)	Surveillance Method / By Whom
5.1 -5.2	Conduct onsite DHA at CCAD and complete all elements of the DHA per NFPA 660, Chapter 7.	NPPA 660	0% failure to provide requirements	COR will review requirements once received. 100% Inspection.
5.3-5.7	Complete contract specific items as stated.	Contract	0% failure to complete required items as applicable	COR will review each element to ensure completion.
5.8-5.10	Deliver a report containing findings pursuant to NFPA 660 and designated sections of this contract	Receipt of report	0% failure to provide requirements	COR will review report once received. 100% Inspection.

7.2 Attachment 2 / Technical Exhibit 2: Deliverables Schedule

Attachment 2/ Deliverables Schedule

Deliverable	Frequency	Number of Copies	Medium /Format	Submit To
Provide certifications and/or qualifications of those conducting the DHA	Once: After contract award	One	Email	COR
Supply prior dust test reports as outlined in 5.4	Once: After contract award	One	Email	Contractor
DHA Report with contents as specified in 5.8-5.10	Within two weeks of testing completion.	One	Email	COR

8.0: Security Requirements

CAO: April 2017

SECURITY REQUIREMENTS FOR ALL CONTRACTS PERFORMED AT CORPUS CHRISTI ARMY DEPOT

This document is a brief overview of rules and regulations of Naval Air Station Corpus Christi (NASCC) and Corpus Christi Army Depot (CCAD). It is not intended to be all-inclusive or cover all contingencies.

Direct specific security requirements questions to the following numbers:

CCAD: (361) 961-3313

NASCC: (361) 961-2480

Regulations:

Army Directive 2014-05 (or its successor) Policy and Implementation Procedures for Common Access Card Credentialing and Installation Access for Uncleared Contractors

AR 25-1, Army Knowledge Management and Information Technology AR 25-2, Information Assurance

AR 25-55, The Department of the Army Freedom of Information Act AR 70-31, Standards for Technical Reporting

AR 190-13, Department of the Army Physical Security Program AR 360-1, The Army Public Affairs Program

AR 380-5, Department of the Army Information Security Program

AR 380-10, Foreign Disclosure and Contact with Foreign Representatives AR 380-49, Industrial Security Program

AR 380-67, Personnel Security (PERSEC) AR 530-1, Operations Security (OPSEC)

AR 530-1, AMC Supp Operations Security (OPSEC) AR 530-1, CCAD Plan Operations Security (OPSEC) AMC-R 525-13, AMC Force Protection Program

DoD 5220.22-M National Industrial Security Program Operating Manual DoD Directives 5230.24, Distribution Statements on Technical Documents

DoD Directives 5230.25, Withholding of Unclassified Technical Data from Public Disclosure DoD Regulation 5200.2-R Personnel Security Program

DoD 5400.11-R, Department of Defense Privacy Program UFC 4-010-01 9 February 2012 Change 1, 1 October 2013

DoD MINIMUM ANTITERRORISM STANDARDS FOR BUILDINGS UNIFIED FACILITIES CRITERIA (UFC)

DoDI 1000.13, Identification (ID) Cards for Members of the Uniformed Services, Their Dependents, and other Eligible Individuals

DoDM 1000.13, Volume 1, DoD Identification (ID) Cards: ID Card Life-Cycle DoDI 5200.02 DoD Personnel Security Program

DoDM 5200.02 Procedures for the DoD Personnel Security Program

U.S. Office of Personnel Management Memorandum, "Final Credentialing Standards for Issuing Personal Identity Verification Cards under HSPD-12," July 31, 2008 Federal Acquisition Regulation (FAR), March 2005

1. Conduct and Behavior: IAW DoD Directive 5200.8, "Security of DoD Installations and Resources", the NAS commander has broad authority to remove or exclude any person or persons from the military installation to protect personnel and property, to maintain good order and discipline, and to ensure the uninterrupted and successful performance of the installations mission. In the exercise of this authority, the commander may refuse to grant entry or may bar Contractor employees. Refusal of entry or barment of any employee does not relieve the Contractor of the responsibility to continue performance under this contract.

1.1. All personnel entering and working at CCAD are subject to all rules, regulations and applicable laws. All personnel and their effects are subject to search, to include vehicles and company belongings.

1.2. No person shall willfully fail or refuse to comply with lawful orders or direction of any civilian or military security police officer.

1.3. The Contractor shall not employ persons for work on this contract if such employees are identified to the Contractor by the Government as a potential threat to the health, safety, security, general well-being or operational mission of the installation and its population. Disrespectful behavior, failure to obey orders or regulations, fighting, horseplay, stealing, illegal use of drugs (using/transporting/selling), consuming or being under the influence of alcohol, or being in the possession of illegal weapons are prohibited and subject to appropriate penalties. This may include being detained, banned from entering the Government facility, or remanded to civilian authorities.

1.4. All Contractor personnel will limit their travel on the installation only to specific areas required for performance of the contract, specified break and meal areas, or in travel directly to and from these locations. Employees found on the installation away from officially identified areas may be detained and/or debarred from the installation.

1.5. Subcontracts; if the Contractor enters into a Subcontractor arrangement with another Contractor, the prime Contractor is responsible for Subcontractor performance and compliance. The prime Contractor must provide a copy of the security requirements to the subcontractor. The contracting officer must ensure any questions of adequacy of the Subcontractor are resolved to the mutual satisfaction of the prime Contractor, Subcontractor, security, and CCAD commander.

1.6. All prospective government and contractor employees are subject to a check of their criminal history prior to being granted access to CCAD. Adverse or derogatory information revealed by these checks, or failure to provide full disclosure, may result in denial of access.

2. Support:

2.1 Security support provided by CCAD to the Contractor includes (if applicable) storage containers for classified information/material, use of base destruction facilities, classified reproduction facilities, use of base classified mail services, security badging, investigation of security incidents, base traffic regulations, use of security forms, and conducting inspections required by DoD 5220.22-R "Industrial Security Regulation", Army Instruction 380-49 "Industrial Security Program", AR 380-5 "Department of Army Information Security Program", and AR 25-2 "Information Assurance" and others as required or deemed necessary by the Government.

2.2 Security support requiring joint Army and Contractor coordination includes packaging classified information, mailing and receiving classified materials, implementing emergency procedures for protection of classified information, security checks, and internal security controls for protection of classified material, sensitive material, and high value pilferable property.

3. Security Investigation Requirements:

3.1. Investigation requirements including IT level and CAC requirements should be clearly indicated in the contract and Performance Work Statement (PWS) as prescribed in paragraph 4.1303, of the FAR: Personal Identity Verification of Contractor Personnel

(a) The Contractor shall comply with agency personal identity verification procedures identified in the contract that implement Homeland Security Presidential Directive-12 (HSPD-12), Office of Management and Budget (OMB) guidance M-05-24 and Federal Information Processing Standards Publication (FIPS PUB) Number 201.

(b) The Contractor shall account for all forms of Government-provided identification issued to the Contractor employees in connection with performance under this contract. The Contractor shall return such identification to the issuing agency at the earliest of any of the following, unless otherwise determined by the Government:

(1) When no longer needed for contract performance.

(2) Upon completion of the Contractor employee's employment.

(3) Upon contract completion or termination.

(c) The Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts when the subcontractor's employees are required to have routine physical access to a Federally-controlled facility and/or routine access to a Federally-controlled information system. It

shall be the responsibility of the prime Contractor to return such identification to the issuing agency in accordance with the terms set forth in paragraph (b) of this section, unless otherwise approved in writing by the Contracting Officer.

3.2. Subcontracts; if the Contractor enters into a Subcontractor arrangement with another Contractor, subcontractors must be clearly identified in the contract agreement.

3.3. Contractors must maintain the same level investigation or higher as their civilian counterparts. In the absence of a civilian counterpart, CCAD Security will determine the level of investigation based on a position sensitivity review. Close coordination with the COR and company are required. All documentation required for access to CCAD for classified contracts or IT Level I & II shall be processed through the CCAD Security Personnel Security Office prior to entering CCAD facilities.

3.4. Classified Contracts: An interim clearance must be in place prior to entering CCAD facilities. All documentation (i.e. SF 86, etc.) required for security clearance shall be processed through the Contractor Facility Security Office (FSO).

3.4.1. For all contracts involving employees who require a security clearance for performance of their duties or access to classified material, the Contractor must possess or obtain a facility security clearance prior to performing contract work. If the Contractor does not possess a facility clearance, the Government (Contracting Office) may request one from the Defense Security Service (DSS).

3.4.2. Contractor employees without a clearance level or background check properly indicated in the Joint Personnel Adjudication System (JPAS) or its successor, will not be assigned to this task directly or indirectly. Contractor employee(s) will not be authorized access, regardless of personal clearance, without the facility first being cleared to the appropriate level by Defense Security Service (DSS).

3.4. The Contractor shall request security clearances for personnel requiring access to classified information or IT Level I or II within 15 days after receiving a facility clearance. If the Contractor is already cleared, they shall request security clearances for the personnel within 15 days after contract award. Due to costs involved with security investigations, requests for Contractor employee security clearances shall be kept to an absolute minimum necessary to perform contract requirements.

3.4.1. IT Level I positions; Contractor employees shall have one of the following prior to commencing work: A current, valid Tier 5 investigation or equivalent or "Interim" Top Secret eligibility by Defense Industrial Security Clearance Office (DISCO) indicated in JPAS.

3.4.2. IT Level II positions; Contractor employees shall have one of the following prior to commencing work: A favorably completed Tier 3 investigation or equivalent or "Interim" Secret eligibility by DISCO indicated in JPAS.

3.4.3. IT Level III positions: Contractor employees shall have one of the following prior to commencing work: A favorably completed Tier 3 investigation or equivalent or "Interim" Secret eligibility by DISCO indicated in JPAS.

3.5. Unclassified Contracts requiring IT access: All documentation (i.e. SF 85*, etc.) required for their initial security appointment for unclassified contracts to IT Level III shall be processed through the CCAD Security Personnel Security Office prior to entering CCAD facilities.

3.6. IT Level III positions; Contractor employees requiring access to CCAD Local Area Network (LAN) shall have background investigation processed through CCAD Personnel Security Office. If the Contractor employee does not possess the proper investigation, the Government (Contracting Officer Representative) will request one. The Government assumes costs and initiates non-clearance investigation by submitting the appropriate Personnel Security Investigation request to the Army Center of Excellence. Minimum requirements for CAC issuance and access to the LAN is an initiated investigation with favorable FBI fingerprint check. Due to costs and the inherent delays involved with security investigations, requests for Contractor LAN access shall be kept to an absolute minimum necessary to perform contract requirements.

3.6.1. Fitness Issues: CCAD Security will be notify the Contracting Officer Representative (COR) when discovery of adverse information indicates potentially actionable issues that may disqualify the Contractor employee from access.

3.6.2. OPM Memorandum, Final Credentialing Standards for Issuing Personal Identity Verification Cards under HSPD-12 provides government-wide credentialing standards to be used by all Federal departments and agencies in determining whether to issue or revoke personal identity verification (PIV) cards to employees and contractor personnel.

3.6.3. Whether or not to grant access is the sole discretion of the Government. The decision not to grant access will not be grounds for contract modification and shall not constitute an excuse for Contractor performance failure.

3.7. System Authorization Access Request (SAAR): Prior to system access, a SAAR, DD Form 2875, shall be completed by the Contractor employee. The Contractor employee shall complete Part I, the COR shall complete Part II, and CCAD Personnel Security shall complete Part III.

3.8. Unclassified Contracts NOT requiring IT access: Contracts not requiring access to CCAD LAN shall be subject to installation access requirements that include the Defense Biometric Identification System (DBIDS) and/or guest sponsorship. The COR shall provide the appropriate details and contact information.

4. IT/IA Requirements:

4.1. All contract employees with access to the CCAD network must be registered in the Army Training Certification Tracking System (ATCTS) at commencement of services. Contractors and associated subcontractor employees must also complete DoD IA Awareness Training before they can be granted access to the CCAD network and complete the training annually thereafter.

4.2. All contractors working IA/IT functions must comply with DoD and Army training requirements in DoDD 8570.01, DoD 8570.01-M, and AR 25-2 within 6 months of employment.

4.3. Per DoD 8570.01-M, DFARS 252.239.7001, and AR 25-2, the contractor employees' supporting IA/IT functions shall be appropriately certified upon contract award. The baseline certification, as stipulated in DoD 8570.01-M, must be completed upon contract award.

5. Foreign Nationals:

5.1. Official Visits: All official foreign visits (visits sponsored by a foreign government) must be based on a legitimate need, be sanctioned by the appropriate foreign attache or embassy, and approved through Department of Army channels. Access will be coordinated through the CCAD Foreign Disclosure Officer (FDO), COR, and respective NASCC/CCAD security offices.

5.2. Unofficial Visits: These are visits by foreign nationals that are not endorsed by a foreign government. The Contractor will submit a request for employee access, based on a legitimate need, to the appropriate COR. The COR will in turn notify the FDO of the request. Due to security considerations, requests for these types of visits should be kept to a minimum. Foreign nationals will require a government escort at all times while on CCAD property. The COR will ensure the foreign contractor employee provides a copy of their passport to NASCC and CCAD security offices, to ensure the appropriate background checks are completed. NOTE: Properly validated permanent resident alien registration card holders are exempt from this requirement.

6. Notifications: The following information will be submitted to the COR and the CCAD Security Manager on company letterhead, signed by the Contractor Facility Security Officer (FSO) within 15 days of awarding the contract. An updated listing shall be provided quarterly or when the company or an employee's status or information changes. Electronic equivalents are acceptable. The notification shall include:

- a. Name, address, and telephone number of company representatives.
- b. Employee's name, last four of social security number, shift.
- c. The contract number and contracting agency.
- d. The highest level of classified information to which Contractor employees require access.
- e. The location(s) of contract performance.
- f. The date contract performance begins and terminates.

7. Security Point of Contact: At no cost to the Government, the Contractor shall appoint a senior Contractor employee to serve as an on-site point of contact for any security concerns at the CCAD location. This may be a full time position or an additional duty position.

8. Security Training:

8.1. All contractor employees, including subcontractor employees, requiring access to Army installations, facilities, or controlled access areas shall complete AT Level I awareness training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever applies. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee to the COR (or to the contracting officer, if a COR is not assigned) within 30 calendar days after completion of training by all employees and subcontractor personnel. AT Level I awareness training is available at <https://atlevel1.dtic.mil/at>.

8.2. US-based contractor and subcontractor employees who are required to travel overseas in performance of their duties must receive government provided AT awareness training that is specific to the area of responsibility (AOR), as directed by AR 525-13. Specific AOR training content will be directed by the combatant commander and the unit ATO will ensure an applicable AT foreign travel briefing is provided to the contractor.

8.3. The contractor and all associated subcontractors shall brief all employees on the local iWATCH program. This is a locally developed training is provided by CCAD security and will be used to inform employees of the types of suspicious behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees' commencing performance, with the results reported to the COR no later than 30 days after training completion.

8.3.1 Contracts with a scope of work that call for the use of CCAD specific information or equipment at off base locations and facilities must develop an OPSEC Standard Operating Procedure (SOP)/Plan within 90 days of contract award which will be reviewed by the CCAD OPSEC Officer for approval IAW AR 530-1, Operations Security. The SOP/Plan must identify CCAD's critical information, why it needs to be protected, where it is located, who is responsible, and how the contractor intends to protect it. This plan is "For Official Use Only" and must contain appropriate document controls in accordance with AR 25-55, Chapter 4. The plan must be stored in a secure location such as a lockable container and must be properly destroyed when no longer needed in accordance with local CCAD policy CCADR 25-92, Chapter 1, Section 1-6(j).

8.4. IAW AR 530-1, new contractors and associated subcontractors who require a CAC Card and access to the CCAD network must complete Level I OPSEC training within 30 calendar days of reporting for duty and annual OPSEC contractor refresher training, thereafter.

8.5. Threat Awareness Reporting Program Training: Per AR 381-12 Threat Awareness and Reporting Program (TARP), contractor employees must receive annual TARP training presented by a Counterintelligence Special Agent.

9. Pass and Identification Items: The Contractor shall obtain the pass and identification items for employees and Contractor owned vehicles required for contract performance.

10. Retrieving Identification Media: The Contractor shall retrieve all identification media, including vehicle passes from employees who depart for any reason before the contract expires; e.g. terminated for cause, retirement, etc. and surrender to CCAD security through the COR.

11. Weapons, Firearms, and Ammunition: Contractor employees are prohibited from possessing weapons, firearms, or ammunition, on themselves or within their Contractor-owned vehicle or privately- owned vehicle while on CCAD.

12. Safeguarding Classified or Sensitive Information: Any material marked as Top Secret, Secret, Confidential, For Official Use Only (FOUO) Freedom of Information Act (FOIA), Privacy Act Information, or any other restrictively marked material discovered by the Contractor or Contractor employees will be surrendered at the earliest opportunity to any military or DoD employee of the installation. Under no circumstances will the Contractor retain such material. The Contractor and all Contractor employees will execute a SF 312, Classified Information Non-Disclosure Agreement or equivalent CCAD Non-Disclosure Agreement as directed or required.

12.1. Classified: Visitor Groups will safeguard classified information IAW DoD 5200.1-R, DoD Information Security Program, AR 380-5, Department of the Army Information Security Program, AR 380- 49, Industrial Security Program, and other directives deemed necessary by the Servicing Security Activity (SSA). The contractor shall comply with FAR 52.204-2, Security Requirements. This clause involves access to information classified "Confidential," "Secret," or "Top Secret" and requires contractors to comply with--(1) The Security Agreement (DD Form 441), including the National Industrial Security Program Operating Manual (DoD 5220.22-M); any revisions to DOD 5220.22-M, notice of which has been furnished to the contractor.

12.2. Information Systems (IS): All Contractor personnel will protect and restrict access to all documentation (i.e. maps, test and evaluation results, vulnerability assessments, audits, results, or findings) describing operational IS architectures, designs, configurations, vulnerabilities, address listings, or user information.

12.3. FOR OFFICIAL USE ONLY (FOUO): The Contractor shall comply with DoD 5400.7-R, Chapter 4, DoD Freedom of Information Act (FOIA) Program requirements and AR 25-55, Chapter III and Chapter IV, The Department of the Army Freedom of Information Act Program. These regulations set forth policy and procedures for the disclosure of records to the public and for marking, handling, transmitting, and safeguarding FOUO material.

12.4. Privacy Act: All data associated with this task is covered by the Privacy Act of 1974, Title 5 of the

U.S. Code, Section 552a and applicable CCAD rules and regulations. Violation of the Act may involve the imposition of criminal penalties. Therefore, all Contractor personnel assigned shall take appropriate actions to prevent unauthorized disclosure of Privacy Act information.

12.5. Operations Security (OPSEC): Contractor personnel must protect information that has been designated as critical to the CCAD mission from disclosure. Critical information will only be disseminated on a "need-to-know" basis and not be discussed in public areas such as hallways, bathrooms, eateries, smoke shacks, or any off-base gathering locations. Contractor employees will not pass critical information over unsecured telephones, facsimiles, and/or e-mail outside of the CCAD firewall. All critical/sensitive information being electronically transmitted will be encrypted. Contractor employees will not post critical information on the web, personal "blogs," or where it is

visible to visitors or the public. All information, to include photos, web posts, and captions, must be reviewed by the CCAD Public Affairs Officer (PAO) and the CCAD Operations Security Officer prior to public dissemination.

12.6. Proprietary Information: Information and materials developed at CCAD are considered business sensitive and must be protected from unauthorized disclosure. This information is the sole property of CCAD and must not be revealed or used except in contract performance. Distribution is limited to authorized US Government agencies and identified Contractors. Contractor personnel must receive prior authorization from the CCAD Public Affairs Officer (PAO) and the CCAD Operations Security Officer to disseminate CCAD information.

13. Reporting Requirements: Contractor personnel shall report to an appropriate authority any information or circumstances of which they are aware may pose a threat to the security of personnel, resources, and classified or unclassified defense information. Contractor employees shall be briefed by their immediate supervisor upon initial on-base assignment.

14. Physical Security: The Contractor shall be responsible for safeguarding all Government property and controlled forms provided for Contractor use. At the end of each work period, all Government facilities, equipment, and materials shall be secured.

15. Key Control: The Contractor shall establish and implement methods of making sure all keys issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. The Contractor shall not duplicate any keys issued by the Government.

15.1. The Contractor shall coordinate with security for the receiving of keys needed to access necessary work spaces.

15.2. The Contractor shall immediately report to security, the Quality Assurance Evaluator (QAE), and Program Manager any occurrences of lost or duplicated keys.

15.3. In the event keys, other than master keys, are lost or duplicated, the Contractor may be required, upon written direction of the contracting officer, to re-key or replace the affected lock or locks at no cost to the Government. The Government may, however, at its option, replace the affected lock or locks or perform re-keying and deduct the cost of such assistance from payment due the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from payment due the Contractor.

15.4. The contractor shall prohibit the use of any door obstruction and/or the removal of hardware that would prevent a door from securing properly.

15.5. The Contractor shall prohibit the use of keys, issued by the Government, by any persons other than the Contractor's employees and the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in performance of contract work requirements in those areas.

16. Lock Combinations: The Contractor shall control access to all Government provided lock combinations to preclude unauthorized entry. The Contractor is not authorized to change lock combinations without written approval by the Government Program Manager. Records with written combinations to authorized secure storage containers, secure storage rooms, or certified vaults, shall be marked and safeguarded at the highest classification level as the classified or sensitive material maintained inside the approved containers or room.

17. Other Responsibilities:

17.1. Traffic Rules and Regulations: All personnel will abide by all traffic and parking rules and regulations. Failure to abide may result in issuance of Government citations.

17.1.2. Permission to park company support vehicles within the perimeters of the job must be approved in advance by the COR and Security. Company support vehicles must have company identification.

17.2. Identification: CCAD requires Contractor personnel wear a Government issued identification badge provided by CCAD, NAS, or their representatives. Safety restrictions may require the pass to be removed while working, but it must be worn in plain view, above the waist, when away from the job site. Failure to do so is a violation of security regulations and may result in disciplinary action.

17.3. Visitors: Contractor personnel must clear all visitors in advance through the COR. This includes Contractor personnel and personal guests. All foreign national visitors will be identified to the appropriate authorities, be based on a legitimate need, and are only allowed at the discretion of the installation commander.

17.4. Photography: All photographic or video equipment must be acquired through the COR who will notify PAO prior to purchase for recommendations and acquisition guidelines. The Property Book Officer will be notified upon receipt of the equipment for inventory and bar tagging. Government purchased photographic and video equipment are accountable items and must be added to a property book account. Under no circumstance will contractors, to include subcontractors, use their own electronic devices to take photographic or video images while at CCAD without prior approval from CCAD's Security Department and/or Public Affairs Office.

17.4.1. Photographs, video, drawings, blueprints, or any other type of rendering or measurements unrelated to contract performance of sensitive areas, such as critical resources, controlled or restricted areas, or other areas deemed sensitive by the Government is strictly prohibited. The Government reserves the right to seize equipment used for unauthorized purposes and the employee and/or Contractor may be debarred from the base, detained, reported and/or remanded to civilian authorities, or have other sanctions placed against them.

17.4.2. Transfer of digitized or electronic photographs, video, drawings, blueprints, or any other type of rendering or measurements must be coordinated/requested through the CCAD information assurance office.

17.5. Weekends /After Duty Hours: Notice of weekend/after duty hours scheduled work must be submitted to Security through the COR. Personnel working weekend or after duty hours must check in and out with Security Building access support to job sites must be arranged with the COR. Keys to areas are obtained by the COR. Requesting areas to be unlocked by personnel other than contract representatives is not authorized.

17.6. Barricades/Construction Areas:

17.6.1. Designating construction areas is Contractor's responsibility and must be coordinated in advance through the COR, Safety, CCAD Fire Marshall, and CCAD Security. Work (construction) areas will be secured at the end of each day. All doors and windows must be closed and locked, and lights and electrical equipment turned off.

17.6.2. All Contractor property locks and keys must be properly secured. The Government is not responsible for personal property left unattended or unsecured.

17.6.3. CCAD Security is to be notified of all emergencies, accidents, disturbances, etc. (as soon after the event as is reasonably possible) or requests for Security related assistance. CCAD Security will make the appropriate calls for proper authorities.

17.6.4. All personnel will abide by all applicable safety procedures and responsibilities. Smoking in areas other than authorized areas located throughout the Depot is prohibited.

17.6.5. Opening or blocking doors, entering non job-related areas without permission or clearance, or removing tools or other Government equipment without proper permission is not permitted. Government buildings and property will not be left unattended and unsecured.

*** END OF NARRATIVE ***

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05		

52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense	2023-01		

Telecommunications Equipment
or Services.

252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.222-42	Statement of Equivalent Rates for Federal Hires.	2014-05		

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.

5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class		Monetary Wage-Fringe Benefits
_____	_____	
_____	_____	
_____	_____	
_____	_____	
_____	_____	
_____	_____	
(End of clause)		

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice & Receiving Report (Combo)

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice & Receiving Report (Combo)

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	HQ0303
Issue By DoDAAC	W912NW

Admin DoDAAC	W912NW
Inspect By DoDAAC	W45N7V
Ship To Code	W45N7V
Ship From Code	N/A
Mark For Code	N/A
Service Approver (DoDAAC)	N/A
Service Acceptor (DoDAAC)	N/A
Accept at Other DoDAAC	W45N7V
LPO DoDAAC	N/A
DCAA Auditor DoDAAC	N/A
Other DoDAAC(s)	N/A

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

N/A

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.237-7010	Prohibition on Interrogation of Detainees by Contractor	2023-01		

Personnel.

List of Contract Documents, Exhibits, or Attachments

"REGISTER OF WAGE DETERMINATIONS UNDER | U.S. DEPARTMENT OF LABOR
THE SERVICE CONTRACT ACT | EMPLOYMENT STANDARDS
ADMINISTRATION

By direction of the Secretary of Labor | WAGE AND HOUR DIVISION
| WASHINGTON D.C. 20210
|
|
|
| Wage Determination No.: 2015-
5225

Daniel W. Simms Division of | Revision No.: 29
Director Wage Determinations | Date Of Last Revision: 12/03/2025
State: Texas

Area: Texas Counties of Aransas, Nueces, San Patricio

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE FOOTNOTE RATE

01000 - Administrative Support And Clerical Occupations

01011 - Accounting Clerk I 17.06

01012 - Accounting Clerk II 19.15

01013 - Accounting Clerk III 21.42

01020 - Administrative Assistant 30.46

01035 - Court Reporter 20.36

01041 - Customer Service Representative I 15.32

01042 - Customer Service Representative II 16.72

01043 - Customer Service Representative III 18.77

01051 - Data Entry Operator I 14.86

01052 - Data Entry Operator II 16.22

01060 - Dispatcher, Motor Vehicle 21.76

01070 - Document Preparation Clerk 17.62

01090 - Duplicating Machine Operator 17.62

01111 - General Clerk I 15.67

01112 - General Clerk II 17.10

01113 - General Clerk III 19.19

01120 - Housing Referral Assistant 22.70

01141 - Messenger Courier 16.83

01191 - Order Clerk I 15.24

01192 - Order Clerk II 16.63

01261 - Personnel Assistant (Employment) I 18.35

01262 - Personnel Assistant (Employment) II 20.53

01263 - Personnel Assistant (Employment) III 22.89

01270 - Production Control Clerk 30.58

01290 - Rental Clerk 15.48

01300 - Scheduler, Maintenance 18.20

01311 - Secretary I 18.20

01312 - Secretary II 20.36

01313 - Secretary III 22.70

01320 - Service Order Dispatcher 19.45

01410 - Supply Technician 30.46

01420 - Survey Worker 18.26

01460 - Switchboard Operator/Receptionist 14.91

01531 - Travel Clerk I 15.37

01532 - Travel Clerk II 16.89

01533 - Travel Clerk III 19.83

01611 - Word Processor I 16.22

01612 - Word Processor II 18.20

01613 - Word Processor III 20.36

05000 - Automotive Service Occupations

05005 - Automobile Body Repairer, Fiberglass 22.98

05010 - Automotive Electrician 21.43

05040 - Automotive Glass Installer 20.38

05070 - Automotive Worker 20.38

05110 - Mobile Equipment Servicer 18.21

05130 - Motor Equipment Metal Mechanic 22.40

05160 - Motor Equipment Metal Worker 20.38

05190 - Motor Vehicle Mechanic 22.40

05220 - Motor Vehicle Mechanic Helper 17.06

05250 - Motor Vehicle Upholstery Worker 19.27

05280 - Motor Vehicle Wrecker 20.38

05310 - Painter, Automotive 21.43

05340 - Radiator Repair Specialist 20.38

05370 - Tire Repairer 16.68

05400 - Transmission Repair Specialist 22.40

07000 - Food Preparation And Service Occupations

07010 - Baker 14.53

07041 - Cook I 14.23

07042 - Cook II 15.91

07070 - Dishwasher 12.99

07130 - Food Service Worker 13.55

07210 - Meat Cutter 18.88

07260 - Waiter/Waitress 11.99

09000 - Furniture Maintenance And Repair Occupations

09010 - Electrostatic Spray Painter 22.40

09040 - Furniture Handler 14.93

09080 - Furniture Refinisher 22.40

09090 - Furniture Refinisher Helper 17.83

09110 - Furniture Repairer, Minor 20.15

09130 - Upholsterer 22.40

11000 - General Services And Support Occupations

11030 - Cleaner, Vehicles 13.48

11060 - Elevator Operator 14.31

11090 - Gardener 21.24

11122 - Housekeeping Aide 14.31

11150 - Janitor 14.31

11210 - Laborer, Grounds Maintenance 16.66

11240 - Maid or Houseman 13.25

11260 - Pruner 14.86

11270 - Tractor Operator 19.89

11330 - Trail Maintenance Worker 16.66

11360 - Window Cleaner 16.05

12000 - Health Occupations

12010 - Ambulance Driver 21.54

12011 - Breath Alcohol Technician 25.15

12012 - Certified Occupational Therapist Assistant 36.45

12015 - Certified Physical Therapist Assistant 35.34

12020 - Dental Assistant 18.33

12025 - Dental Hygienist 43.79

12030 - EKG Technician 30.21

12035 - Electroneurodiagnostic Technologist 30.21

12040 - Emergency Medical Technician 21.54

12071 - Licensed Practical Nurse I 22.48

12072 - Licensed Practical Nurse II 25.15

12073 - Licensed Practical Nurse III 28.03

12100 - Medical Assistant 17.91

12130 - Medical Laboratory Technician 25.10

12160 - Medical Record Clerk 17.01

12190 - Medical Record Technician 19.03

12195 - Medical Transcriptionist 20.53

12210 - Nuclear Medicine Technologist 51.37

12221 - Nursing Assistant I 13.54

12222 - Nursing Assistant II 15.23

12223 - Nursing Assistant III 16.62

12224 - Nursing Assistant IV 18.65

12235 - Optical Dispenser 17.58

12236 - Optical Technician 20.68

12250 - Pharmacy Technician 20.04

12280 - Phlebotomist 17.97

12305 - Radiologic Technologist 33.80

12311 - Registered Nurse I 26.27

12312 - Registered Nurse II 32.13

12313 - Registered Nurse II, Specialist 32.13

12314 - Registered Nurse III 38.87

12315 - Registered Nurse III, Anesthetist 38.87

12316 - Registered Nurse IV 46.60

12317 - Scheduler (Drug and Alcohol Testing) 31.15

12320 - Substance Abuse Treatment Counselor 23.96

13000 - Information And Arts Occupations

13011 - Exhibits Specialist I 24.42

13012 - Exhibits Specialist II 30.26

13013 - Exhibits Specialist III 37.01

13041 - Illustrator I 24.42

13042 - Illustrator II 30.26

13043 - Illustrator III 37.01

13047 - Librarian 33.51

13050 - Library Aide/Clerk 14.01

13054 - Library Information Technology Systems Administrator 30.26

13058 - Library Technician 17.66

13061 - Media Specialist I 21.84

13062 - Media Specialist II 24.42

13063 - Media Specialist III 27.22

13071 - Photographer I 17.30

13072 - Photographer II 19.37

13073 - Photographer III 23.98

13074 - Photographer IV 29.33

13075 - Photographer V 35.49

13090 - Technical Order Library Clerk 19.04

13110 - Video Teleconference Technician 20.68

14000 - Information Technology Occupations

14041 - Computer Operator I 18.66

14042 - Computer Operator II 20.88

14043 - Computer Operator III 23.25

14044 - Computer Operator IV 25.85

14045 - Computer Operator V 28.63

14071 - Computer Programmer I (see 1) 21.52

14072 - Computer Programmer II (see 1) 26.05

14073 - Computer Programmer III (see 1)

14074 - Computer Programmer IV (see 1)

14101 - Computer Systems Analyst I (see 1)

14102 - Computer Systems Analyst II (see 1)

14103 - Computer Systems Analyst III (see 1)

14150 - Peripheral Equipment Operator 18.66

14160 - Personal Computer Support Technician 25.85

14170 - System Support Specialist 29.06

15000 - Instructional Occupations

15010 - Aircrew Training Devices Instructor (Non-Rated) 34.05

15020 - Aircrew Training Devices Instructor (Rated) 41.19

15030 - Air Crew Training Devices Instructor (Pilot) 49.37

15050 - Computer Based Training Specialist / Instructor 34.05

15060 - Educational Technologist 36.79

15070 - Flight Instructor (Pilot) 49.37

15080 - Graphic Artist 22.41

15085 - Maintenance Test Pilot, Fixed, Jet/Prop 49.37

15086 - Maintenance Test Pilot, Rotary Wing 49.37

15088 - Non-Maintenance Test/Co-Pilot 49.37

15090 - Technical Instructor 21.85

15095 - Technical Instructor/Course Developer 26.72

15110 - Test Proctor 17.64

15120 - Tutor 17.64

16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations

16010 - Assembler 10.89

16030 - Counter Attendant 10.89

16040 - Dry Cleaner 12.79

16070 - Finisher, Flatwork, Machine 10.89

16090 - Presser, Hand 10.89

16110 - Presser, Machine, Drycleaning 10.89

16130 - Presser, Machine, Shirts 10.89

16160 - Presser, Machine, Wearing Apparel, Laundry 10.89

16190 - Sewing Machine Operator 13.45

16220 - Tailor 14.17

16250 - Washer, Machine 11.42

19000 - Machine Tool Operation And Repair Occupations

19010 - Machine-Tool Operator (Tool Room) 27.16

19040 - Tool And Die Maker 32.15

21000 - Materials Handling And Packing Occupations

21020 - Forklift Operator 20.09

21030 - Material Coordinator 30.58

21040 - Material Expediter 30.58

21050 - Material Handling Laborer 16.53

21071 - Order Filler 17.43

21080 - Production Line Worker (Food Processing) 20.09

21110 - Shipping Packer 18.04

21130 - Shipping/Receiving Clerk 18.04

21140 - Store Worker I 17.51

21150 - Stock Clerk 24.10

21210 - Tools And Parts Attendant 20.09

21410 - Warehouse Specialist 20.09

23000 - Mechanics And Maintenance And Repair Occupations

23010 - Aerospace Structural Welder 38.24

23019 - Aircraft Logs and Records Technician 31.55

23021 - Aircraft Mechanic I 36.67

23022 - Aircraft Mechanic II 38.24

23023 - Aircraft Mechanic III 39.84

23040 - Aircraft Mechanic Helper 27.92

23050 - Aircraft, Painter 35.08

23060 - Aircraft Servicer 31.55

23070 - Aircraft Survival Flight Equipment Technician 35.08

23080 - Aircraft Worker 33.35

23091 - Aircrew Life Support Equipment (ALSE) Mechanic I 33.35

23092 - Aircrew Life Support Equipment (ALSE) Mechanic II 36.67

23110 - Appliance Mechanic 27.83

23120 - Bicycle Repairer 23.66

23125 - Cable Splicer 35.85

23130 - Carpenter, Maintenance 23.10

23140 - Carpet Layer 26.46

23160 - Electrician, Maintenance 28.83

23181 - Electronics Technician Maintenance I 34.80

23182 - Electronics Technician Maintenance II 36.61

23183 - Electronics Technician Maintenance III 38.27

23260 - Fabric Worker 25.03

23290 - Fire Alarm System Mechanic 22.44

23310 - Fire Extinguisher Repairer 23.66

23311 - Fuel Distribution System Mechanic 30.48

23312 - Fuel Distribution System Operator 24.78

23370 - General Maintenance Worker 18.05

23380 - Ground Support Equipment Mechanic 36.67

23381 - Ground Support Equipment Servicer 31.55

23382 - Ground Support Equipment Worker 33.35

23391 - Gunsmith I 23.66

23392 - Gunsmith II 26.46

23393 - Gunsmith III 29.10

23410 - Heating, Ventilation And Air-Conditioning Mechanic 24.33

23411 - Heating, Ventilation And Air Conditioning Mechanic (Research Facility) 25.37

23430 - Heavy Equipment Mechanic 29.54

23440 - Heavy Equipment Operator 23.71

23460 - Instrument Mechanic 33.49

23465 - Laboratory/Shelter Mechanic 27.83

23470 - Laborer 16.53

23510 - Locksmith 27.83

23530 - Machinery Maintenance Mechanic 30.10

23550 - Machinist, Maintenance 33.20

23580 - Maintenance Trades Helper 16.02

23591 - Metrology Technician I 33.49

23592 - Metrology Technician II 34.93

23593 - Metrology Technician III 36.39

23640 - Millwright 28.40

23710 - Office Appliance Repairer 21.04

23760 - Painter, Maintenance 20.81

23790 - Pipefitter, Maintenance 30.60

23810 - Plumber, Maintenance 29.27

23820 - Pneudraulic Systems Mechanic 29.10

23850 - Rigger 27.47

23870 - Scale Mechanic 26.46

23890 - Sheet-Metal Worker, Maintenance 30.93

23910 - Small Engine Mechanic 22.88

23931 - Telecommunications Mechanic I 28.29

23932 - Telecommunications Mechanic II 29.50

23950 - Telephone Lineman 36.42

23960 - Welder, Combination, Maintenance 27.85

23965 - Well Driller 29.10

23970 - Woodcraft Worker 29.10

23980 - Woodworker 23.66

24000 - Personal Needs Occupations

24550 - Case Manager 19.58

24570 - Child Care Attendant 12.56

24580 - Child Care Center Clerk 15.68

24610 - Chore Aide 11.08

24620 - Family Readiness And Support Services Coordinator 19.58

24630 - Homemaker 19.58

25000 - Plant And System Operations Occupations

25010 - Boiler Tender 27.09

25040 - Sewage Plant Operator 24.60

25070 - Stationary Engineer 27.09

25190 - Ventilation Equipment Tender 20.63

25210 - Water Treatment Plant Operator 24.60

27000 - Protective Service Occupations

27004 - Alarm Monitor 21.16

27007 - Baggage Inspector 15.99

27008 - Corrections Officer 23.57

27010 - Court Security Officer 24.35

27030 - Detection Dog Handler 17.89

27040 - Detention Officer 23.57

27070 - Firefighter 29.98

27101 - Guard I 15.99

27102 - Guard II 17.89

27131 - Police Officer I 31.33

27132 - Police Officer II 34.82

28000 - Recreation Occupations

28041 - Carnival Equipment Operator 16.72

28042 - Carnival Equipment Repairer 17.86

28043 - Carnival Worker 12.52

28210 - Gate Attendant/Gate Tender 17.96

28310 - Lifeguard 13.66

28350 - Park Attendant (Aide) 20.10

28510 - Recreation Aide/Health Facility Attendant 14.67

28515 - Recreation Specialist 24.90

28630 - Sports Official 16.02

28690 - Swimming Pool Operator 19.98

29000 - Stevedoring/Longshoremen Occupational Services

29010 - Blocker And Bracer 33.30

29020 - Hatch Tender 33.30

29030 - Line Handler 33.30

29041 - Stevedore I 31.51

29042 - Stevedore II 35.03

30000 - Technical Occupations

30010 - Air Traffic Control Specialist, Center (HFO) (see 2) 46.29

30011 - Air Traffic Control Specialist, Station (HFO) (see 2) 31.93

30012 - Air Traffic Control Specialist, Terminal (HFO) (see 2) 35.15

30021 - Archeological Technician I 19.73

30022 - Archeological Technician II 22.07

30023 - Archeological Technician III 27.35

30030 - Cartographic Technician 27.35

30040 - Civil Engineering Technician 24.98

30051 - Cryogenic Technician I 30.28

30052 - Cryogenic Technician II 33.44

30061 - Drafter/CAD Operator I 19.73

30062 - Drafter/CAD Operator II 22.07

30063 - Drafter/CAD Operator III 24.60

30064 - Drafter/CAD Operator IV 30.28

30081 - Engineering Technician I 16.73

30082 - Engineering Technician II 18.77

30083 - Engineering Technician III 21.00

30084 - Engineering Technician IV 26.01

30085 - Engineering Technician V 31.81

30086 - Engineering Technician VI 38.49

30090 - Environmental Technician 22.96

30095 - Evidence Control Specialist 27.35

30210 - Laboratory Technician 36.49

30221 - Latent Fingerprint Technician I 24.05

30222 - Latent Fingerprint Technician II 26.53

30240 - Mathematical Technician 27.35

30361 - Paralegal/Legal Assistant I 20.98

30362 - Paralegal/Legal Assistant II 26.00

30363 - Paralegal/Legal Assistant III 31.80

30364 - Paralegal/Legal Assistant IV 38.47

30375 - Petroleum Supply Specialist 33.44

30390 - Photo-Optics Technician 27.35

30395 - Radiation Control Technician 33.44

30461 - Technical Writer I 27.35

30462 - Technical Writer II 33.44

30463 - Technical Writer III 40.46

30491 - Unexploded Ordnance (UXO) Technician I 29.42

30492 - Unexploded Ordnance (UXO) Technician II 35.60

30493 - Unexploded Ordnance (UXO) Technician III 42.67

30494 - Unexploded (UXO) Safety Escort 29.42

30495 - Unexploded (UXO) Sweep Personnel 29.42

30501 - Weather Forecaster I 30.28

30502 - Weather Forecaster II 36.83

30620 - Weather Observer, Combined Upper Air Or Surface Programs 24.60

30621 - Weather Observer, Senior (see 2) 27.35

31000 - Transportation/Mobile Equipment Operation Occupations

31010 - Airplane Pilot 35.60

31020 - Bus Aide 15.68

31030 - Bus Driver 21.11

31043 - Driver Courier 18.17

31260 - Parking and Lot Attendant 14.67

31290 - Shuttle Bus Driver 16.29

31310 - Taxi Driver 13.23

31361 - Truckdriver, Light 19.41

31362 - Truckdriver, Medium 20.54

31363 - Truckdriver, Heavy 23.52

31364 - Truckdriver, Tractor-Trailer 23.52

99000 - Miscellaneous Occupations

99020 - Cabin Safety Specialist 17.36

99030 - Cashier 13.11

99050 - Desk Clerk 13.45

99095 - Embalmer 29.42

99130 - Flight Follower 29.42

99251 - Laboratory Animal Caretaker I 13.77

99252 - Laboratory Animal Caretaker II 14.71

99260 - Marketing Analyst 32.78

99310 - Mortician 29.42

99410 - Pest Controller 18.01

99510 - Photofinishing Worker 15.46

99710 - Recycling Laborer 21.97

99711 - Recycling Specialist 26.06

99730 - Refuse Collector 19.58

99810 - Sales Clerk 13.78

99820 - School Crossing Guard 15.00

99830 - Survey Party Chief 27.71

99831 - Surveying Aide 18.62

99832 - Surveying Technician 22.92

99840 - Vending Machine Attendant 25.09

99841 - Vending Machine Repairer 29.47

99842 - Vending Machine Repairer Helper 25.09

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage

determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually.

Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor; and 3 weeks after 8 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which

requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you

work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am.

If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive

ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to

this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of ""wash and wear"" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard**

Form 1444 (SF-1444) **

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR

4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.
- 3) The contracting officer reviews the proposed action and promptly submits a report

of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1))

*** END OF NARRATIVE ***

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
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DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06		

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)